

imputation, and said of Merrike that he had intermeddled with Pie honestly, pitifully and conscionably.

Pie's offence was condemned by the whole Court to be horrible and odious, and the offence of robbery, murder and perjury against God; for, by the Bishops,¹ the breach of all the law is comprehended in this: *Diliges Deum toto corde, et proximum tuum sicut teipsum*. And by the ancient law *Voluntas reputabatur pro facto*. By the law of God and the Civil Law, *oculus pro oculo, dens pro dente, manus pro manu*, etc., and also *per legem talionis*: And Pie had intended murder and robbery in his heart, which is an offence before God: And the offence is more odious and detestable in this, that he has made Justice a murderer and robber.

Pie was sentenced to a fine of 1000 marks, pillory at Westminster and there to lose one ear, papers, from [Westminster] Hall to ride with his face to the horse's tail to 'Temple gate,' and there to be pilloried and to lose the other ear, and perpetual imprisonment.² As for Merrike, he was acquitted with great favour and grace, and delivered from all imputation of 'intemperance' or 'heate.' And since they were both professors of the law, [the Court] exhorted them that have authority to admit to the bar, to have care to name those that were literate, honest and religious, and in the admittance of such to the House [Inn], for if they had had [such care], they would never have admitted Pie to the House, but he would have pursued his father's trade, who was a butcher; and [they should] not have calls by the dozens or scores, as now is the use: For the good and literate professors of the law are as good members of the Commonwealth as any others, but the ignorant and bad professors of the law are as 'daungerouse vermin' to the Commonwealth as 'Caterpillers,' etc. [*sic*].

Pie's offence contains murder, robbery, and perjury

The intent of murder, robbery, or perjury, is an offence before God

Lex talionis before followed

By the Lord Treasurer, and then by the Lord Keeper

[p. 94]

Sentence on Pie

Pie fined 1,000 marks, nailed to the pillory, ears, horse, perpetual imprisonment

Merrike acquitted with grace

Lord Keeper and the Chief Justices

Caveat as to calls to the bar and admittances at the Inns of Court

Good professors of the law are good members, and on the contrary. By the Lord Keeper

¹ The Archbishop of Canterbury and the Bishop of London.

² 'Pie, another barrister of the Inner Temple, stood on the pillory before the Temple Gate, and lost his

ears, for plotting the death of a fellow lawyer, by way of justice.' State Papers, Dom., Eliz., 284, No. 14. John Chamberlain to Dudley Carleton.

1602
May 7

In Camera Stellata, coram Consilio ibidem,
Veneris, 7^o Maij, 1602, An^oque Elizab. R^{uae} 44. Tr^{no} Pasche.¹

WINSTON
v.
THROCK-
MORTON
—
Extortion
and other
several
offences
Answer, not
guilty
[p. 96]
Murder and
accessory
to it

Sir Thomas
Throckmor-
ton assumed
to acquit the
accessory to
the murder
for 800*l*.

Honourable
personages
scandalised
without
cause

Good
apology by
the Coun-
sellor in
giving
evidence.
The Lord
Keeper said
that this
aggravated
the offence

Fountains
and rivers
of Justice

A Statute
taken for
1600*l*. to
acquitt [him]
of felony.
This is ex-
tortion
[even] if the
money be
not paid

Sir Henry Winston informed against Sir Thomas Throckmorton for 'diverse heynouse offences,' in number now only nine, to all of which Sir Thomas pleaded Not Guilty. The first was for great extortion,² namely:—

One Lewis in the County of Monmouth was barbarously murdered by his 'Cosin Germain,' also named Lewse [*sic*], who was indicted, arraigned and executed for it; and another Lewis, brother to him who was murdered, being accessory to the murder, and the wife intending to proceed against him, he repaired to the said Sir Thomas Throckmorton, who assumed to acquit him and discharge him; and to this [end] advised and conferred with the said Lewis that money and large sums would have to be expended to procure this, and some great personages would have to be used to effect it. And therefore he imposed imputation on the Earl of Pembroke and his Lady, the Lord Admiral and the Chief Justice, without cause or probability of any colour. And therefore at the commencement [*a l'entraunce*] of the evidence, Phillips, of Counsel with the plaintiff, made apology that, notwithstanding the Earl of Pembroke and his Lady were by the said Sir Thomas injuriously scandalized, yet it would plainly appear that they were clear, and so proved by the Earl himself, by the depositions of others, and by the confession of Sir Thomas himself. The Attorney said, as to the others, that it was a great slander, for 'no harte in Englaunde did ever Conceau or had anye thoughte of Corruption in them; & if theise Fountaines be thus scandalized wth Corruption, what shall wee poore brookes look for.' Sir Thomas Throckmorton, being a Justice of the Peace and one of the Council of the Marches, April 35 Elizabeth, took a statute for £1600 from the said Lewis without defeasance, but the intent and agreement was that the said Sir Thomas should

¹ Eleven Councillors and Judges were present.

² For the others see *post*, p. 137, *et seq.*

have £800 for freeing the said Lewes, which sum was paid to the said Sir Thomas; and to prove this he produced Sir Thomas's letters, and the depositions of Lewes and others.

Coventrie, Crue, Hutton, Toppam, and others, of Counsel with the defendant, did not defend the offence nor extenuate it, but they confessed that it was an offence in Sir Thomas, who submitted himself in all humility to the Court; and they all affirmed that in the first place it was not an offence of such a nature and quality as to receive sentence here, for it was not extortion, and so it was pardoned by the Statute of 39 Elizabeth, if it be outside or after the pardon of 35 Elizabeth; and Sir Thomas craved the benefit of Her Majesty's gracious pardon. And that it is not extortion is thus proved: Firstly, the said Sir Thomas is not a Justice of the Peace, nor ever was, in the County of Monmouthe, nor in any other County but in the County of Gloster only; and when one is of the Council of the Marches, their authority is only when they are appealed to and have instructions, and not otherwise; and Sir Thomas was never sworn, and so was not a Judge, Justice, or other officer in the County of Monmouthe, and therefore no extortion. And also the said Sir Thomas took and received the money, not to his own use, but to give and pay it to others; and thus he disbursed it to the use of Lewis, and therefore no corruption or extortion in him. Also the said Lewis intended *bona fide* to intermarry with the daughter of the said Sir Thomas, and he was never indicted or arraigned for the felony, but Sir Thomas thought in his conscience that he was innocent, and not guilty of [the crime]; and also the wife of the murderer had the indictment against her husband removed into the Queen's Bench, where it was quashed for insufficiency; therefore the accessory cannot be indicted; for by law, where the principal is not *legitimo modo attinctus et convictus*, the accessory cannot be [put] in jeopardy of his life.

And firstly, as to whether it was extortion or not, the Court seemed to be of opinion that it was, and also that it was

[p. 96]
Extortion
and *quomodo*
pardoned.
The pardons
of 39 and 35
Elizabeth

Authority of
the Council
of the Welsh
Marches

Principal
not suffi-
ciently
convicted,
accessory is
acquitted

1602
May 7

[p. 97]

Chief
Justice
attainted of
high treason
for adjourn-
ing a trial

Council of
Wales

Judge by
patent and
not sworn is
a Judge

excepted from the pardon of 39 Elizabeth ; but the consideration of this was reserved that the Judges might deliver their opinions on the next day.¹ And upon this was now much good matter delivered touching extortion and its nature to devour him who uses it, and the difference between extortion and bribery in a Judge or Officer, the grievousness of the offence, as to the punishment of Sir William Thorpe, Chief Justice of England, for adjourning the trial of a felon to the next Assizes following, for which offence he was indicted, arraigned, and executed for high treason ; and this was confirmed by Act of Parliament, so heinous, grievous and odious is the offence of corruption and extortion in a Judge.²

Much good matter was delivered by the Lord Keeper and others touching the authority of the Council of Wales, under the Statutes of 26 Henry VIII., cap. 4 & 6, and 34 Hen. VIII., cap. 26, [by which] the President and Council were created. And therefore if a man be made a Judge by patent and be not sworn, still he is a Judge, and shall be punished for extortion or corruption as a Judge : and that he is not sworn is his own fault, and he shall be punished for this. So is the case of the Council of Wales, who are made by patent, and, within all the Marches of Wales, each has good and equal authority ; but if they are not named to the Council and [? do not] receive instructions from the Queen, they cannot sit nor have an allowance for their ' dyete ' at the Queen's charge. This point also was referred to the Judges to consider.

¹ Their opinion is given *post*, p. 187.

² This worthy was appointed Chief Justice of the King's Bench in 1346. In 1350 he was charged with having taken bribes, and was found guilty by the special Commissioners appointed by King Edward III. to investigate the matter. It was not, however, for adjourning trials, but for staying writs of exigent, that Thorpe received the bribes. He was committed to the Tower, and all his lands and goods were ordered to be seized into the King's hands, until

the royal will and pleasure should be known. The King, by a writ dated Nov. 19, 1350, declared that the proper punishment was that Thorpe should be degraded and hanged, and directed the Commissioners to pass sentence accordingly, which they did. However, his life was spared, and Coke says that he eventually received a full pardon. The record and process were afterwards laid before the Parliament, which confirmed the judgment. Foss. This appears to be the Act of Parliament referred to in the text.

By the Lord Keeper : If a defendant in this Court be charged with several offences and is a delinquent in his defence, then all manner of proof is to be extended, with any kind of favourable and gracious interpretation, to charge and condemn him ; and this is the use and rule of this Court.

Delinquent
defendant
shall have
no favour

Also a use or rule observed in this Court [is], if the plaintiff has examined witnesses on interrogatories which are published, the defendant shall not re-examine them or other witnesses on new interrogatories, but on those first ones only.

No re-exami-
nation on
new interro-
gatories

In Camera Stellata, coram Consilio ibidem, Mercurij, 12 Maij, 1602. Elizab. 44. Tr^{no} Pasche.¹

[p. 98]
1602
May 12

The same cause between Sir Henry Winston and Sir Thomas Throckmorton.² It was opened now that in Michaelmas Term, 43 and 44 Eliz., Sir Henry Winston was plaintiff against Sir Thomas Throckmorton, who was sentenced and fined 1000 marks for a fraudulent deed, pronounced by two verdicts to be fraudulent ; and after those verdicts, the said Sir Thomas bargained for this deed secretly and subtilly that he had not notice of this and that he purchased this and to whom the assignment was made. And in Hilary Term, 44 Eliz., Sir Thomas Throckmorton was plaintiff against the said Sir Henry, who was fined £1000 for 'intemperancye et batteryes' as Justice of the Peace, in resisting warrants, and principally for procuring an indictment for felony and burglary to be made and found petty larceny.

WINSTON
v.
THROCK-
MORTON
—
The plaintiff
and de-
fendant
formerly
sentenced in
this court
Fine of 1000
marks
against Sir
Thomas for
fraud

Fine of
1000l.
against
Winston,
Knight, for
altering an
indictment

The Judges resolved that the offence of the said Sir Thomas was extortion and not excepted in the pardons of 35 or 39 [Elizabeth], and that he was a justice of oyer and terminer in this county.³

Resolution
of the judges
as to ex-
tortion

The second offence with which they charged the said Sir Thomas was that he by his bailiff seized the sheep of one

Defendant
discharged
of this
offence

¹ Ten Councillors and Judges were present.

² See *ante*, p. 134.

³ These points had been referred to them ; see *ante*, p. 136.

1602
May 12

p. 991

Time of the
offence
uncertain,
and there-
fore par-
doned

Felony if he
depart when
he has taken
presse-money

A good thing
to read the
Statutes at
large and
not the
Abridg-
ments
Departure
when pressed
is punish-
able with
imprison-
ment and
death

Time of this
uncertain,
and there-
fore par-
doned also

Taking
money to
discharge
pressed
soldiers,
a great
offence.

Mason on suspicion that he was guilty of the death of one who [had been] eight months buried. After [which time, Sir Thomas] procured the Coroner to raise him, and by a jury of his tenants to inquire concerning his death; and he spoke to the Coroner and the Jurors for the favour that they would not acquit so evil a man, so that as lord of the Manor, he should have chattels of felons. And he bound [Mason] over at three Assizes, when he was discharged by proclamation; and then he was pressed, through the information of the said Sir Thomas, and sent after the Captain to Bathe for service in Ireland. And he returned without his Captain's warrant, and was then committed by the said Sir Thomas: but the time of this offence was uncertain, and so was pardoned by 35 Elizabeth.

Whereupon good matter was resolved by all the Judges, the Attorney and the Lord Keeper, that if a man take money as 'presse-monie,' and be in charge of his Captain, and then depart without warrant, it is felony by the statute of 3 Henry VII., which is not repealed but continues in force. (And therefore the Attorney advises students of the law to read the Statutes at large, and not to trust to the Abridgements.) And it is good discretion in any Justice of the Peace to commit such a person, and for the like offence divers [persons] were executed at Mildende, and now it is necessary to publish this.

The third offence. One ¹ Neste, was seised of land in tail, having issue two sons; both the sons were accused of murder; the said Sir Thomas took a bond from the younger son of £200 for the payment of £100 after his father's death, to condemn his elder brother of the said murder, and another bond of £200 for the payment of £100 after his father's death, to discharge himself of robbery and felony.

The fourth offence. In taking money to discharge pressed soldiers; but this was against Garlike and other two servants of the said Sir Thomas, and not against Sir Thomas himself.

¹ Blank in MS.

And so on the whole matter, the said Sir Thomas was, for the first offence only, the extortion, fined 2000 marks, with imprisonment and public confession at the next Assizes.

Throckmorton
fined 2,000
marks,
imprison-
ment, and
confession
at the
Assizes
[p. 100]
Garlike fined
40l., the
others 20l.,
imprison-
ment, and
satisfaction

Garlike, for taking money to discharge pressed soldiers, was fined £40, with imprisonment and restitution to the parties: and the others were fined £20, with imprisonment and restitution.

Special Sessions at Godstone,¹ Jovis 27 Maij, 1602. Elizab. 44, before Richard Bostoke, William Forster, William Gainseforde and John Turner, Justices of the Peace and Judges there.

1602
May 27

Between William Gardiner and George Etheridge, for riots and forcible entries. Edward Coomes of the Middle Temple of Counsel with Gardiner, and myself² with Etheridge.

ETHERIDGE
v.
GARDINER
and others
—
Riot and
forcible
entry

William Gardiner seised of a messuage and lands named Legham, on the last day of May, 39 Elizabeth, made a lease to Edward Branden for 21 years, of all messuages, lands, tenements, woods, underwoods, and other profits, commodities, and hereditaments, with the appurtenances, etc., (except all timber trees, with free egress and regress to carry them, etc.,) paying £110 yearly at the two feasts or within 20 days after any of the feasts, and if it should happen that the said rent should be in arrear for the space of ten days after the said 20 days, the same being lawfully demanded within the hours of two and five of the same said day [the tenth day] at the 'Cobbarde en Graies Inne Halle in Midd.,' that then, etc.; And on January 12, 40 Elizabeth, the said Edward Brandon, for £220, assigned his lease and term to the said George Etheridge, who entered, and was, and is, possessed of the same accordingly. And the said William Gardiner demanded the rent accord-

¹ In the county of Surrey.

² John Hawarde of the Inner Temple, the writer of the MS The

Hawardes lived at Tandridge, which is close to Godstone.

1602
May 27

ing to the condition of the lease, and for non payment thereof, entered on the land, made a lease, and brought *eiectione firme* ; and the said George Etheridge brought a bill in Chancery ; and now at this Session, George Etheridge preferred three several bills of indictment for forcible and riotous entry.

[p. 101]

The first was that William Gardener, William Bromloe, Mathew Hatton, John Dodde, John Crumlin, Alan Beste, and William Harlinge, May 8, 44 Elizabeth, with force and arms, *manu forti*, ' riotose et routouse,' in disturbance of the peace, with weapons offensive and defensive, entered into the gate-house of Legham, and assaulted and beat the servants and cattle of the said George Etheridge and expelled them, contrary to the laws and statutes in that case made and provided.

The second was that John Dodde, William Kinge, and James Walter, May 12, 44 Elizabeth, entered on the land with force, ' riotose & routouse,' and burnt five wooden carts, and diverted [*sic*, ? overturned] a load of coals.

The third was that William Kinge, Mathewe Hatton, Richard Ratcliffe, Alan Beste, Thomas Dennis and Robert Wrighte, May 14, 44 [Elizabeth], entered on the land again, with force as before, and chased and beat the beasts ; and this continued until May 18 aforesaid, and they diverted a ' wane ' of coals.

Lambert,
fo. 149
Bro. Forcib.
ent. 29
Crompt.
fo. 68
Stat. 8
Hen. VI.,
cap. 9
Fitzherbert
Nat. Bro.
249 & Mar.
Diar. 141
Lambert,
fo. 187
Crompt.
fo. 61
3 Hen. VII.
1° et 10
21 Hen. VII.
89, Pineux
Crompt.
fo. 62

The evidence to prove this was direct ; and the first position was, that all manner of force is condemned by law ; but where one has been in quiet possession for three whole years, without interruption, such a person may guard his possession by force. And that would be said [to be] quiet possession without interruption, if [you] and all yours be not actually driven out, and removed out. And if he, or those whose estate he hath, have been in possession for three years, he may defend his possession with such force and company as he hath in his house, but he may not bring armour, nor company, nor ' shotte ' to guard it. For, it is said, a man may justify battery of another in defence of the possession of his goods, by 21 Edw. III., 34,